



## CHAPTER 11.

An Act to make provision for the registration as medical practitioners or as pharmacists of certain persons having qualifications other than the United Kingdom qualifications required by the Medical Acts and the Pharmacy Acts, and to repeal certain provisions as to pharmacists in that behalf. [18th December 1947.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

## PART I.

## MEDICAL PRACTITIONERS.

1.—(1) In the case of a person to whom this section applies, the General Medical Council (in this Part of this Act referred to as "the Council") may, if they think fit and subject to the provisions of this Part of this Act, give a direction that he shall be registered in the medical register under this section.

(2) A person to whom this section applies, and as to whom such a direction is given, shall be registered in the medical register without examination in the United Kingdom (otherwise than as may be required by virtue of paragraph (b) of subsection (2) of section four of this Act).

(3) Registration of a person under this section shall be either (in accordance with the subsequent provisions of this Part of this Act in that behalf) as a Commonwealth practitioner or as a foreign practitioner.

(4) The provisions of the Medical Act, 1858, relating to persons registered under that Act, and relating to the medical register and offences in respect thereof, shall, so far as may be, apply in the case of persons registered under this section in the same

Power to register persons of certain categories as Commonwealth or foreign practitioners.

21 & 22 Vict. c. 90.

PART I.  
—cont.

way as those provisions apply in the case of persons registered under that Act and of the register as kept thereunder.

(5) Such a direction shall be given only in the case of a person who is resident in the United Kingdom and is so resident otherwise than for a temporary purpose.

(6) Subject to the provisions of section five of this Act, such a direction shall not be given in the case of a person to whom this section applies by virtue of any of the three next succeeding sections unless an application in that behalf is made to the registrar of the Council within the period specified in that section as the time for application in the case of such a person.

Persons  
registered  
under Defence  
Regulations  
or 10 & 11  
Geo. 6. c. 19.

2.—(1) Section one of this Act shall apply to persons who, having been registered as Commonwealth practitioners or as foreign practitioners by virtue either—

(a) of Regulation 32B of the Defence (General) Regulations, 1939, or

(b) of section five of the Polish Resettlement Act, 1947,  
are so registered at the expiration of the said Regulation and of the said section five.

(2) Such persons shall remain registered as such practitioners notwithstanding the expiration of the said Regulation and of the said section five, but subject to the provisions of the Medical Acts relating to the erasure of names from the medical register, for a period of six months beginning with the passing of this Act.

(3) The giving of a direction in the case of such a person shall be conditional on his satisfying the Council that he has rendered satisfactory service in a medical capacity whilst registered by virtue of the said Regulation or of the said section five, as the case may be, and of the last preceding subsection.

(4) In the case of such a person who was registered by virtue of the said Regulation in circumstances such that he was not required to satisfy the Council that he held some recognised Commonwealth or foreign diploma or diplomas, the giving of a direction shall be conditional also on his satisfying the Council that he holds some such diploma or diplomas.

(5) In the case of such a person the time for application shall be the said period of six months beginning with the passing of this Act, and, if an application made during that period is pending at the expiration thereof, the period of the applicant's registration by virtue of subsection (2) of this section shall be extended to the time of the final determination of the application.

(6) Registration of such a person under section one of this Act shall be as a Commonwealth practitioner or as a foreign practitioner according as he was registered as the one or as the other at the expiration of the said Regulation and of the said section five

3.—(1) Section one of this Act shall apply to persons who after the first day of September, nineteen hundred and thirty-nine, have served in a medical capacity outside the United Kingdom in any of His Majesty's forces (including His Majesty's Dominion forces, Indian forces and Burma forces) or in any voluntary organisation operating in connection with any such forces, or have served in a medical capacity outside the United Kingdom for the care of British subjects or British protected persons in a place in His Majesty's dominions, a British protectorate or a country or territory under His Majesty's protection or suzerainty or in which His Majesty had for the time being jurisdiction during the carrying on of war operations in that place or its occupation by the enemy or the continuance of circumstances arising therefrom.

PART I.  
—*cont.*

Persons who have served in a medical capacity in H.M. forces overseas.

(2) The giving of a direction in the case of such a person shall be conditional on his satisfying the Council that he has rendered satisfactory service in the medical capacity in which he served as aforesaid, that he holds some recognised Commonwealth or foreign diploma or diplomas, and that he is of good character.

(3) In the case of such a person the time for application shall be a period of twelve months beginning with the passing of this Act.

(4) Registration of such a person shall be as a Commonwealth practitioner or as a foreign practitioner according to the place of grant of his recognised diploma or diplomas.

4.—(1) Section one of this Act shall apply—

Other qualified persons in the U.K. in war circumstances.

- (a) to persons, other than such as are mentioned in the two last preceding sections, who, before the fourth day of August, nineteen hundred and forty-seven, have been permitted to enter, or to remain in, the United Kingdom in view of circumstances attributable to war, as to which, in case of doubt, a certificate of the Secretary of State shall be conclusive; and
- (b) to persons not falling within the preceding paragraph but falling within paragraph (a) or (b) of subsection (3) of section five of the Polish Resettlement Act, 1947 (which specified the classes of persons to whom that section applied):

Provided that section one of this Act shall not apply by virtue of this section to a person who has made an application for registration in the medical register by virtue of section eleven or twelve of the Medical Act, 1886, of Regulation 32B of the Defence 49 & 50 Vict. (General) Regulations, 1939, or of section five of the Polish c. 48. Resettlement Act, 1947, before the said fourth day of August.

PART I.  
—cont.

(2) The giving of a direction in the case of such a person shall be conditional on his satisfying the Council either—

- (a) that he holds some recognised Commonwealth or foreign diploma or diplomas, or
- (b) that he holds the qualification of doctor of medicine or of bachelor of medicine of the Polish School of Medicine at the University of Edinburgh,

and that he is of good character, and, in the case of a person falling within paragraph (a) of subsection (1) of this section, on his having been selected for employment in a medical capacity in a hospital or other institution for the time being approved by the Minister of Health or the Secretary of State for the purposes of this section or, in the case of a person falling within paragraph (a) or (b) of subsection (3) of section five of the Polish Resettlement Act, 1947, on his being employed, or having been selected for employment, in a medical capacity for the care solely or mainly of persons being members of any of the Polish resettlement forces or otherwise as mentioned in paragraph (i) of that subsection.

(3) In the case of such a person the time for application shall be a period of twelve months beginning with the passing of this Act.

(4) Registration of such a person shall be as a Commonwealth practitioner or as a foreign practitioner according to the place of grant of his recognised diploma or diplomas if he holds such, or, if he does not but holds a qualification of the said Polish School of Medicine, shall be as a foreign practitioner.

(5) Registration of such a person shall be provisional until his registration is confirmed by the Council on application in that behalf to their registrar in accordance with subsection (7) of this section.

(6) In relation to anything other than employment as mentioned in subsection (2) of this section or things done or omitted in the course thereof, a person whose registration is provisional shall, notwithstanding anything in subsection (4) of section one of this Act, be treated as if he were not registered.

(7) An application for confirmation of a provisional registration may be made at any time after the applicant has been registered under the provisional registration for six months, but not later than the expiration of a period of eighteen months beginning with the date of his provisional registration, and the Council shall confirm such a registration if, on his duly applying in that behalf, the person registered satisfies them that he has rendered satisfactory service in a medical capacity during the period of his provisional registration, but not otherwise.

(8) A person whose provisional registration has not been confirmed at the expiration of the said period of eighteen

months shall cease to be registered at the expiration of that period unless an application for confirmation duly made by him is then pending, and in that case he shall, if his application is unsuccessful, cease to be registered at the time of its final determination (without prejudice, in either case, to the operation in the meantime of the provisions of the Medical Acts relating to the erasure of names from the register).

PART I.  
—*cont.*

5. If an application for a direction for registration under section one of this Act, or for confirmation of a registration that is provisional under section four of this Act, is made after the expiration of the time for such an application, and the Council are satisfied that there was sufficient reason or excuse for its not having been made before the expiration of that time, the preceding provisions of this Act (other than the provisions of subsection (5) of section two and subsection (8) of section four extending periods of registration where applications are pending) shall have effect as if the application had been made within that time, except that, in the case of an applicant under subsection (7) of section four of this Act whose provisional registration has lapsed, there shall be substituted for the right thereby conferred to confirmation of the provisional registration on his satisfying the condition therein mentioned the right to have his name restored to the register on his satisfying that condition.

Provisions as to applications made out of time.

6. Where a direction for registration under section one of this Act is given, the right to registration pursuant thereto shall be subject to payment by the applicant of the fee for the time being determined by the Council for the registration of persons as Commonwealth practitioners or as foreign practitioners, as the case may be, under section eleven or twelve of the Medical Act, 1886.

Registration fees.

7.—(1) If an application for a direction for registration under section one of this Act, or for confirmation of a registration that is provisional under section four of this Act, is refused, the registrar of the Council shall, if required by the applicant within one month from the date of notification to him of the refusal, state in writing the reason for the refusal, and the applicant may, within six months from the receipt by him of the statement, appeal to the Privy Council, and the Privy Council after communication with the Council, may dismiss the appeal or may order the Council to give the direction, or to confirm the provisional registration (or restore the applicant's name to the register), as the case may be :

Appeal to the Privy Council against refusal of application

Provided that no appeal shall lie under this section against a refusal of an application—

- (a) in a case in which the giving of a direction is conditional on the applicant's satisfying the Council that he holds

PART I.  
 —cont.

some recognised Commonwealth or foreign diploma or diplomas, on the ground that a diploma held by him is not a recognised Commonwealth or foreign diploma ;

- (b) on the ground that the application was made after the expiration of the time for the application without sufficient reason or excuse.

(2) In relation to a refused application as to which an appeal lies under this section but as to which no requirement to the registrar to state the reason for the refusal is made within the period of one month mentioned in the preceding subsection, or as to which such a requirement is so made but no appeal is made within the period of six months therein mentioned, references in this Act to the time of final determination of an application shall be construed as references to the expiration of the month or of the six months, as the case may be.

Power to register as Commonwealth or foreign practitioners certain persons in the U.K. temporarily for employment in hospitals.

8.—(1) In the case of a person who satisfies the Council that he is or intends to be in the United Kingdom temporarily for the purpose of employment in a medical capacity in a hospital or other institution approved by the Council for the purposes of this section, and that he holds some recognised Commonwealth or foreign diploma or diplomas, the Council may, if they think fit, give a direction that he shall be registered in the medical register under this section, and a person as to whom such a direction is given shall be registered in the medical register without examination in the United Kingdom.

(2) Where a direction for registration under this section is given, the Council may include therein a direction that the right to registration pursuant thereto shall be subject to payment by the person as to whom the direction is given of such fee as may be therein specified not being greater than the fee for the time being determined by the Council for the registration of persons as Commonwealth practitioners or as foreign practitioners, as the case may be, under section eleven or twelve of the Medical Act, 1886.

(3) Registration of a person under this section shall continue only whilst he is in such employment as is mentioned in the preceding subsection and on its termination (as to which, in case of doubt, the decision of the Council shall be conclusive) he shall cease to be registered under this section.

(4) Registration of a person under this section shall be as a Commonwealth practitioner or as a foreign practitioner according to the place of grant of his recognised diploma or diplomas.

(5) The provisions of the Medical Act, 1858, relating to persons registered under that Act, and relating to the medical register

and offences in respect thereof, shall, so far as may be, apply in the case of persons registered under this section in the same way as those provisions apply in the case of persons registered under that Act and of the register as kept thereunder, but in relation only to employment as mentioned in subsection (1) of this section and to things done or omitted in the course thereof, and in relation to any other matter a person registered under this section shall be treated as if he were not registered.

PART I.  
—*cont.*

9.—(1) In Part II of the Medical Act, 1886, for references to a colonial medical diploma and to a colonial practitioner, there shall be substituted references to a Commonwealth medical diploma and to a Commonwealth practitioner respectively, and references in any document to a colonial medical diploma and to a colonial practitioner shall be construed accordingly.

Substitution of "Commonwealth" for "colonial" in Part II of the Medical Act, 1886.

(2) References in section two of this Act to registration as a Commonwealth practitioner and to a Commonwealth diploma shall be construed as if the preceding subsection had been in force at the time of the registration in question.

10.—(1) In this Part of this Act—

"the General Medical Council" means the Council established under section three of the Medical Act, 1858;

"medical capacity" means the capacity of a practitioner of medicine, surgery or midwifery.

Provisions as to interpretation of Part I.

(2) In this Part of this Act references to some "recognised Commonwealth or foreign diploma or diplomas" shall be construed as references to some diploma or diplomas recognised for the time being by the Council for the purposes of this Part of this Act as furnishing a sufficient guarantee of the possession of the requisite knowledge and skill for the efficient practice of medicine, surgery and midwifery, references to a person's holding some such diploma or diplomas shall include references to his having held such and also to his having passed the examinations necessary for obtaining such, and references to the place of grant of such shall be construed, in the case of a person who has passed such examinations but has not had a grant, as references to the normal place of grant of a diploma of the kind in question.

(3) The provisions of subsection (2) of section thirteen of the Medical Act, 1886 (which confers power on the Privy Council to order the Council to recognise a diploma for the purposes of that Act) shall apply as respects the recognition of a diploma for the purposes of this Part of this Act.

(4) Where under this Part of this Act registration of a person is to be as a Commonwealth practitioner or as a foreign practitioner according to the place of grant of his recognised diploma

PART I.  
—cont.

or diplomas, his registration shall be as the former if that place is within His Majesty's dominions, in a British protectorate, or in any other country or territory under His Majesty's protection or suzerainty or in which His Majesty has for the time being jurisdiction, and the latter if that place is elsewhere.

(5) References in this Part of this Act to Regulation 32B of the Defence (General) Regulations, 1939, shall include references both to the original Regulation of that number made on the twenty-fourth day of July, nineteen hundred and forty, and to the substituted Regulation of that number made on the eleventh day of September, nineteen hundred and forty-one.

## PART II.

## PHARMACISTS.

Provision for  
registration  
as pharmacists  
of persons  
holding  
qualifications  
granted  
outside the  
United  
Kingdom.  
15 & 16 Vict.  
c. 56.  
31 & 32 Vict.  
c. 121.

11.—(1) The power of the Council of the Pharmaceutical Society of Great Britain to make byelaws under section two of the Pharmacy Act, 1852, shall include power to make byelaws as to the registration as pharmaceutical chemists or as chemists and druggists under the Pharmacy Act, 1852, and the Pharmacy Act, 1868, of persons holding or having held a diploma as a pharmacist granted in a place outside the United Kingdom, or having passed the examinations necessary for obtaining such a diploma, providing for their registration (subject to such conditions as to character and otherwise as may be prescribed by the byelaws) either—

(a) without examination in the United Kingdom, and without satisfying any requirements to which they would be subject apart from this section under byelaws made by virtue of paragraph (a) or (c) of section four of the Poisons and Pharmacy Act, 1908 (which relate to preliminary practical training and to periods and courses of study); or •

(b) subject to requirements as to examination in the United Kingdom, or to any such requirements as aforesaid, relaxed as compared with those to which they would be subject apart from this section.

(2) The provision to be made by virtue of this section may include provision requiring the payment, as a condition of registration, of such fee as may be prescribed by the byelaws:

Provided that no such requirement shall be imposed in the case of persons who, having been registered as pharmaceutical chemists or as chemists and druggists by virtue either of Regulation 32C of the Defence (General) Regulations, 1939, or of section five of the Polish Resettlement Act, 1947, are so registered at the expiration of the said Regulation and of the said section five.



PART II.  
—cont.

(3) Such persons as are mentioned in the proviso to the last preceding subsection shall remain registered, notwithstanding the expiration of the said Regulation 32C and of the said section five, but subject to the provisions of the Pharmacy and Poisons Acts, 1852 to 1941, relating to the removal and erasure of names from the register, for a period of six months beginning with the passing of this Act.

(4) Paragraph (b) of section four of the Poisons and Pharmacy Act, 1908 (which confers power to provide by byelaws for the registration as pharmaceutical chemists or as chemists and druggists, without examination, of certain persons, including persons holding colonial diplomas) shall cease to apply to any person by virtue of his holding a colonial diploma, and accordingly the words "of any persons holding colonial diplomas or" in that paragraph are hereby repealed, and any byelaws made by virtue of that paragraph shall cease to have effect so far as regards registration of any person by virtue of his holding such a diploma, but without prejudice to any registration effected before the passing of this Act.

## PART III.

## SHORT TITLE.

12. This Act may be cited as the Medical Practitioners and Pharmacists Act, 1947. **Short title.**